

25STCV05677 25STCV05677

County: los-angeles

Division: Civil Law and Motion

Department: 414

Hearing date: 2026-07-30

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Case Number: 25STCV05677 Hearing Date: July 30, 2026 Dept: 414

25STCV05677

Abel Hernandez v. MJTVS Investments, LLC

Thursday,

July 30, 2026

[TENTATIVE] ORDER GRANTING

DEFENDANT'S MOTION FOR ATTORNEY'S FEES (3838)

I.

BACKGROUND

The

complaint alleges that Plaintiff bought real property from defendant pursuant to a written contract. Defendant allegedly disclosed that the property had been recently remodeled inferring that the work was permitted when it was not.

Plaintiff incurred costs of \$43,500.00 to correct the violations. Plaintiff alleges claims for (1) fraud, (2) intentional misrepresentation, (3) negligent infliction of emotional distress, and (4) for punitive damages.

On

March 24, 2026, the Court granted Defendant's unopposed motion for summary judgment. Defendant as the prevailing party, now moves for attorney's fees and costs of \$36,372 as permitted by the fee provision in the purchase agreement at issue.

Plaintiff

was timely served with the motion, and no opposition has been filed.

II.

LEGAL STANDARDS

The Court can award attorney's fees to the prevailing party if there is a contract providing for recovery of such fees. (Civ. Code § 1717(a).) The purchase agreement at issue here contains such provision. (Ex. A ¶ 22.)

To

determine whether fees are reasonable, the court begins with the lodestar, which is the number of hours reasonably spent multiplied by the reasonable hourly rate. (PLCM

Group v. Drexler (2000) 22 Cal.4th 1084, 1095.) The court considers a number of factors including "the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure, and other circumstances in the case.'" (PLCM

Group at 1096.) The lodestar figure can be adjusted based on the factors specific to the case. (Id.)

The court may rely on

his or her own experience and is given broad discretion in calculating reasonable attorney's fees. (Ketchum

v. Moses (2001) 24 Cal.4th 1122, 1132 ["The experienced trial judge is the best judge of the value of professional services rendered in his court, and while his judgment is of course subject to review, it will not be disturbed unless the appellate court is convinced that it is clearly wrong."].)

Ultimately, the trial court "is the

best judge of the value of professional services rendered in its court" and its

determination will not be disturbed unless it is "clearly wrong." (Akins v. Enterprise Rent-A-Car Co. (2000) 79 Cal.App.4th 1127, 1134.)

III.

DISCUSSION

Plaintiff

commenced this action on February 28, 2025, and was finally resolved on March 26, 2026, when the Court granted Defendant's motion for summary judgment. Defendant submits billing records for fees incurred from April 1, 2025, through March 30,

2026, which have been broken down as follows:

Services rendered

Fees

Evaluation of
Claims and Preparation of Meet and Confer Letter and Answer

\$4,835.00

Discovery (including
preparation of written discovery requests and review of discovery responses,
supplemental responses, and document production)

1,125.00

Court
appearances including case management and motion for summary judgment hearing

3,758.00

Case preparation

8,070.00

Motion for
summary judgment

8,062.00

Fee motion
preparation, review opposition, prepare reply and appear

10,462.00

Total fees
incurred

\$36,312.00

Defendant

incurred filing fees of \$60 for a total fee and cost award of \$36,372.00.

The

Court has reviewed the declaration of Thomas Dreblow and finds that the hourly rates billed by defense counsel and three associates are reasonable. The Court has reviewed the billing records and finds that the fees were reasonably incurred.

IV.

CONCLUSION

Accordingly, Defendant's motion for attorney's fees and costs of \$36,372 is GRANTED